



Security Council

Seventy-seventh year

Provisional

9164th meeting

Tuesday, 25 October 2022, 3 p.m.

New York

President: Mr. Biang. (Gabon)

Members:

Albania	Mr. Stastoli
Brazil	Mr. Leite Novaes
China	Mr. Xing Jisheng
France	Mrs. Jaraud-Darnault
Ghana	Mr. Issahaku
India	Mr. Raguttahalli
Ireland	Ms. Moran
Kenya	Ms. Mbabu
Mexico	Mrs. Robledo López
Norway	Ms. Syed
Russian Federation	Mr. Kirpichenko
United Arab Emirates	Ms. Matar
United Kingdom of Great Britain and Northern Ireland . .	Mr. Eckersley
United States of America	Mr. Wood

Agenda

The situation in the Middle East

Letter dated 30 September 2022 from the Secretary-General addressed to the President of the Security Council (S/2022/727)

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22-65179 (E)



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The meeting was called to order at 3 p.m.

Adoption of the agenda

The agenda was adopted.

The situation in the Middle East

Letter dated 30 September 2022 from the Secretary-General addressed to the President of the Security Council (S/2022/727)

The President (*spoke in French*): In accordance with rule 37 of the Council's provisional rules of procedure, I invite the representatives of the Islamic Republic of Iran, the Syrian Arab Republic and Türkiye to participate in this meeting.

In accordance with rule 39 of the Council's provisional rules of procedure, I invite Mrs. Izumi Nakamitsu, High Representative for Disarmament Affairs, to participate in this meeting.

The Security Council will now begin its consideration of the item on its agenda.

I wish to draw the attention of Council members to document S/2022/727, which contains the text of a letter dated 30 September 2022 from the Secretary-General addressed to the President of the Security Council.

I now give the floor to Mrs. Nakamitsu.

Mrs. Nakamitsu: I thank members for the opportunity to brief the Council on the implementation of resolution 2118 (2013), on the elimination of the chemical-weapon programme of the Syrian Arab Republic. Since the Council's previous consideration of the matter (see S/PV.9141), and consistent with established practice, the Office for Disarmament Affairs has been in regular contact with its counterparts at the Organization for the Prohibition of Chemical Weapons (OPCW) on its activities related to the matter. Yesterday, on 24 October, I held my monthly call with the Director-General of the OPCW to receive an update on developments and to ascertain his views.

The efforts by the OPCW Declaration Assessment Team to clarify all the outstanding issues regarding the initial declaration and subsequent declarations of the Syrian Arab Republic have made no progress since the Council last met on the issue. Unfortunately, all efforts by the OPCW Technical Secretariat to organize a twenty-fifth round of consultations between the Declaration Assessment Team and the Syrian National Authority

continue to be unsuccessful. As Council members were previously informed, the OPCW Technical Secretariat has provided the Syrian Arab Republic with a list of pending declarations and other documents requested by the Declaration Assessment Team since 2019, with the aim of assisting the Syrian Arab Republic in resolving the 20 outstanding issues.

As has been stressed every month for many years now, owing to the identified gaps, inconsistencies and discrepancies that remain unresolved, the continuing assessment of the Technical Secretariat is that at this stage, the declaration submitted by the Syrian Arab Republic cannot be considered accurate or complete in a way that accords with the Chemical Weapons Convention. The OPCW Technical Secretariat remains fully committed to ensuring the complete implementation by the Syrian Arab Republic of all its declaration requirements and to assisting Syria in fulfilling its obligations under the Convention, the decisions of OPCW policymaking organs and Security Council resolution 2118 (2013). I would like to take this opportunity to reiterate my support for the integrity, professionalism, impartiality, objectivity and independence of the work of the OPCW.

I have been informed that the outcome of the ninth round of inspections of the Barzah and Jamrayah facilities of Syria's Scientific Studies and Research Centre (SSRC) conducted by the OPCW Technical Secretariat from 11 to 18 September will be reported on in due course. With regard to the detection of a Schedule 2 chemical at those facilities in November 2018, I regret to inform the Council that the Syrian Arab Republic has yet to provide sufficient technical information or explanations that would enable the OPCW Technical Secretariat to close the issue. I have been advised that the OPCW Technical Secretariat has not yet received the requested information from the Syrian Arab Republic regarding the unauthorized movement of the two cylinders related to the chemical-weapon incident that took place in Douma on 7 April 2018, when they were destroyed in an attack on a chemical-weapon production facility. The Syrian Arab Republic should respond with urgency to the Technical Secretariat's requests.

With regard to the invitation extended by the Director-General of the OPCW to the Minister for Foreign Affairs and Expatriates of the Syrian Arab Republic to an in-person meeting to identify ways to ensure that the Syrian Arab Republic complies with all of its obligations under the Convention in the shortest

time possible, I note that while the OPCW Technical Secretariat was still awaiting a response from the Syrian Arab Republic on the latest version of the agenda submitted in December 2021, the Syrian Arab Republic suggested a preliminary meeting in Beirut. I have been advised that since then, communication between the focal points in charge of preparations for the meeting between the Director-General and the Syrian Minister has been reinitiated by the OPCW Secretariat and the Syrian Arab Republic has responded.

As per previous briefings informing the Council, the OPCW Fact-Finding Mission remains in the process of studying all available information related to allegations of the use of chemical weapons in the Syrian Arab Republic. I have been advised that the Fact-Finding Mission continues to engage with the Syrian Arab Republic and other States parties to the Chemical Weapons Convention with regard to a number of incidents and preparations for upcoming deployments. I understand that the Investigation and Identification Team is continuing its investigations into incidents where the Fact-Finding Mission has determined that chemical weapons were used or likely used in the Syrian Arab Republic. The Investigation and Identification Team will issue further reports in due course.

With regard to the decision entitled “Addressing the Possession and Use of Chemical Weapons by the Syrian Arab Republic” (C-25/DEC.9), adopted on 21 April 2021, I have been informed that unfortunately the Syrian Arab Republic has not yet completed any of the measures stipulated in paragraph 5 of decision EC-94/DEC.2. The OPCW Technical Secretariat will continue to engage the Syrian Arab Republic with regard to their completion and will continue to report to the OPCW Executive Council as mandated.

It cannot be repeated often enough: there is no justification for the use of chemical weapons by anyone, anywhere, under any circumstances. There are no excuses for an inexcusable act. We must remain united and determined to prevent their use or the threat of their use. Those who have used chemical weapons must be identified and held to account. It is an obligation for all of us. It is my sincere hope that members of the Council will unite on the issue.

The President (*spoke in French*): I thank Mrs. Nakamitsu for her briefing.

I shall now give the floor to those members of the Council who wish to make statements.

Mr. Wood (United States of America): I thank Mrs. Nakamitsu for her briefing. We appreciate her persistent efforts and the work of the experts of the Organization for the Prohibition of Chemical Weapons (OPCW) to provide independent, thoroughly researched and detailed information about the lack of Syria’s progress towards the complete and verifiable elimination of its chemical weapons programme.

Nine years ago in October 2013, the Syrian regime submitted to the OPCW its official plan for the systematic, total and verified destruction of its chemical weapons programme. Just weeks earlier, the regime had killed approximately 1,000 people in a horrific chemical attack on Ghouta. Faced with such carnage, the Syrian regime should have been shamed into changing its ways and finally ridding the world of those barbaric weapons. But the Al-Assad regime has no shame. Therefore, rather than comply with its agreements and make the world and Syria safer, the regime has instead worked for years to pull the wool over the eyes of the Security Council.

The Al-Assad regime, backed by Russia, continues to obfuscate and delay rather than fully declare the chemical weapons stockpiles it has repeatedly used — a violation of its obligations under the Chemical Weapons Convention, which it joined in 2013. The Al-Assad regime also continues to prevent the deployment of the OPCW’s Declaration Assessment Team (DAT) to Syria, in clear violation of its obligations under resolution 2118 (2013). The DAT has now proposed to address unresolved issues via correspondence.

While the United States commends the OPCW for seeking a way forward, document review is no substitute for the DAT deploying to Syria. As such, we continue to call on those with influence over the Al-Assad regime to encourage Damascus to immediately permit the DAT to return to Syria, resolve discrepancies and help ensure the verified elimination of Syria’s chemical weapons programme, as it is bound to do under the Chemical Weapons Convention and resolution 2118 (2013).

In the absence of such positive action, we call on the Al-Assad regime to provide a full response to the DAT’s information request as expeditiously as possible. It is worth noting, however, that even when the Syrian regime has provided information, the regime’s chemical weapons declarations have been riddled with

gaps, inconsistencies and unresolved discrepancies. As we heard today, for that reason the OPCW Director-General continues to assess that the Syrian declarations still cannot be considered accurate or complete.

Syria's failure to provide complete and accurate information is extremely concerning. There is indeed a real possibility that the Al-Assad regime could once again use chemical weapons, as it has done repeatedly against its own population. The United States Government assesses that the Al-Assad regime has used chemical weapons at least 50 times since Syria joined the Convention in 2013. The OPCW-United Nations Joint investigative Mechanism and the OPCW's Investigation and Identification Team (IIT) have independently confirmed the regime's use of chemical weapons on eight occasions. The IIT's work is ongoing, and we look forward to its next report on the April 2018 attack on Douma.

The Council is not duped by the Al-Assad regime's obfuscation, aided by its ally Russia. OPCW States parties are not duped either and continue to support the OPCW's work on Syria. That has been repeatedly demonstrated, most recently at the 101st meeting of the OPCW Executive Council, held earlier this month, and by the overwhelming support for the organization's budget, which includes funding for the Investigation and Identification Team. The regime's continued refusal to provide answers or information requested years ago by the DAT is an affront to the OPCW, the Council and the international community.

Meanwhile, the regime's failure to declare and destroy its chemical weapons stores is a threat to the Syrian people and the wider region. Taken together, those behaviours undermine our collective security and make the world less safe. The United States remains committed to holding the Syrian regime accountable for its use of chemical weapons, and it condemns in the strongest possible terms the use of chemical weapons anywhere, by anyone, under any circumstances. Just yesterday, we took action to hold accountable three Syrian regime military officials involved in the August 2013 air strikes on Ghouta: they and their immediate families are now ineligible to enter the United States.

The regime should end its intransigence and simply meet its obligations under both resolution 2118 (2013) and the Chemical Weapons Convention as quickly as possible. Doing so would be a positive step towards enhancing our collective security and would help

ensure that we never again witness the horrific scenes that we have seen in Syria over the past nine years.

Mr. Kirpichenko (Russian Federation) (*spoke in Russian*): We take note of Mrs. Nakamitsu's briefing.

Unfortunately, once again we heard nothing substantially new and were presented with the copy-and-paste report (see S/2022/727, annex) of the Director-General of the Organization for the Prohibition of Chemical Weapons (OPCW), which was moreover issued on 30 September, almost one month ago. It is our understanding that the next meeting of the Security Council on the subject may be held as early as the beginning of November, and a new report will be issued in just a few days. What is therefore the point of discussing today a document that is already outdated? Such an approach undermines the credibility of the Security Council's discussion of the implementation of resolution 2118 (2013).

Today's meeting will be remembered only for the most recent refusal of OPCW Director-General Fernando Arias to brief the Council. He seems panicked about answering the inconvenient questions that the Technical Secretariat was asked about remedying its politicized approach to the Syrian chemical weapons dossier and the manipulation of the report of the Fact-Finding Mission on the Douma incident.

We reiterate once again that the content of the reports of the OPCW Director-General are unbalanced, repeat the same accusations against the Syrians and are tailored for one purpose — to create the impression that the dialogue between OPCW and the Syrian Arab Republic is stalled solely as a result of the Syrian side's alleged unwillingness to cooperate. Our Syrian colleagues will once again have to fill in the blanks today and discuss the aspects of their interaction with the Technical Secretariat that are not mentioned in the report. We will refrain meanwhile from wasting our breath.

It is clear that the timetable for discussing the implementation of resolution 2118 (2013) in the Security Council must be streamlined. Discussing the Syrian chemical weapons dossier every month will remain a pointless exercise until Mr. Arias deigns to address the Council as would befit a responsible international civil servant of his rank, especially given that the matter is discussed quarterly even at OPCW headquarters in The Hague.

Mr. Leite Novaes (Brazil): First of all, I would like to thank High Representative Izumi Nakamitsu for her briefing.

Once again, we are meeting in this Chamber in a context in which little seems to have changed in the situation on the ground or in the relationship between the Syrian Arab Republic and the Organization for the Prohibition of Chemical Weapons (OPCW). By now it seems unarguable that the frequency of these meetings has to change. Holding monthly meetings when there are few or no relevant developments on the ground is not efficient in terms of either time or resources. The OPCW's monthly report (see S/2022/727, annex) was published just today, a few minutes ago, and we almost had a meeting in which we would not have even had a report to comment on. Unfortunately, due to the way that these debates are structured, our interventions are the same, regardless of whether or not we have a report.

In the absence of new developments in the Syrian chemical-weapon file, I would like to once again reaffirm our traditional opposition on the matter. Chemical weapons are utterly incompatible with international humanitarian law and can therefore have no place in the practices and doctrines of today's world. The use of such weapons violates international agreements and poses serious threats to international peace and security. Incidents must be addressed with transparency and be subject to thorough and impartial investigations in accordance with the Chemical Weapons Convention.

Mrs. Jaraud-Darnault (France) (*spoke in French*): I thank Mrs. Nakamitsu for her briefing.

In 2013, the Syrian regime murdered thousands of civilians on the outskirts of Damascus with weapons that are prohibited under international law. No one has ever disputed the fact that the attack took place. Following it, the Security Council unanimously adopted resolution 2118 (2013). Now we once again deplore the lack of progress. The regime continues to obstruct the work of the Organization for the Prohibition of Chemical Weapons (OPCW). After six refusals by the regime, the Technical Secretariat had to give up on deploying the Declaration Assessment Team to the country. Syria must come clean on its entire stockpile. It must comply with its international obligations if it wants its rights and privileges restored. We urge Syria to respond in writing to the questions that the Technical Secretariat had regarding its initial declaration, and

to respond to the agenda proposed for the Technical Secretariat almost a year ago so that the meeting in Beirut between the two parties can take place. France will pay very close attention to the conclusions of the next two reports of the Investigation and Identification Team on the Douma and Marea attacks.

Despite the obstacles, the OPCW teams have continued their investigative work with tenacity, independence and professionalism, and I want to commend them once again. The smear campaigns against them are unacceptable. Here I would like to point out that the fight against impunity and a total ban on the use of chemical weapons continue to be our priorities and are the foundation of the effectiveness and credibility of the prohibition regime. That is why we continue to stand up in support of the international partnership against impunity for the use of chemical weapons.

Mrs. Robledo López (Mexico) (*spoke in Spanish*): I thank High Representative Nakamitsu for her briefing.

We note once again the scant progress made in the efforts to shed light on the use of chemical weapons in Syria, which is a major obstacle to accountability regarding the use of such weapons in the Syrian conflict. Among other problems, 20 outstanding issues relating to the initial Syrian declaration remain to be clarified, and yet despite that it has not been possible to hold a twenty-fifth round of consultations between the Declaration Assessment Team and the Syrian authorities since February 2021. There has been no clarification on the unauthorized transfer of chlorine cylinders related to the 2018 incident in Douma, and no information been provided to explain the chemical residue identified at the Barzah facilities in November 2018. We once again call on the Syrian Government to submit the information requested and to cooperate fully and in good faith with the teams of the Organization for the Prohibition of Chemical Weapons (OPCW).

We acknowledge the Technical Secretariat's efforts to make progress on the file through exchanges of information in writing, given the obstacles it has faced in making progress in any other way. However, that correspondence is no substitute for in-person consultations. We also take note of the inspections it conducted in September at the Barzah and Jamrayah facilities of the Scientific Studies and Research Centre, as well as the most recent deployment of the Fact-Finding Mission. Mexico will follow the publication of

the corresponding reports closely. Besides that, we hope that the meeting between the Minister for Foreign and Expatriate Affairs of Syria and the Director-General of the OPCW will be held soon, on the understanding that a proposed agenda is already in place and that officials from both sides have already been appointed as focal points. We note that the preliminary meeting in Beirut will be of a technical nature for the purpose of fine-tuning the details of the meeting in question.

My delegation once again expresses its support for the OPCW Technical Secretariat and its technical teams, which, despite numerous constraints, continue to carry out their work in a professional, independent and impartial manner and in accordance with the highest international standards. In conclusion, we again condemn in the strongest terms the use of chemical weapons by any actor in any circumstances.

Ms. Moran (Ireland): I thank High Representative Izumi Nakamitsu for her briefing.

We deeply regret that we are meeting once again with no progress visible on this file. That is despite the determination, flexibility and professionalism of the Technical Secretariat of the Organization for the Prohibition of Chemical Weapons (OPCW) in seeking to work with Syria to resolve significant outstanding issues.

We have listened to Syria at the OPCW and at the Security Council provide excuses for failing to adhere to its obligations. Unfortunately, Syria continues to place conditions on the OPCW's work and its engagement with the Technical Secretariat. It has blocked consultations with the Declaration Assessment Team for well over a year, contrary to resolution 2118 (2013). Syria has failed to agree to the agenda and parameters for a meeting between Director-General Arias and Foreign Minister Mekdad that has been outstanding for more a year now. We thank the High Representative for her update on that, and we urge Syria to engage with all due speed on that meeting. Unfortunately, Syria continues to undermine the work and reputation of the OPCW and its investigation teams. The Security Council has given the OPCW a clear mandate to resolve those issues with Syria, and it should have the full backing of the Council in carrying that out.

Syria has repeatedly raised concerns about chemical weapons in the hands of non-State actors, and we agree that this is an area that must be taken seriously. However, here again Syria's words do not

match its actions. The OPCW receives no cooperation from Syria in following up on those alleged cases. In fact, the cases that Syria raises in its notes to the OPCW and the United Nations cannot be linked to any specific event in Syria or to the findings from OPCW investigations. In contrast, the OPCW has taken the issue of terrorists' use of chemical weapons very seriously. The Organization has investigated where it possessed real information and issued reports, for example, on the use of chemical weapons in Syria by the Islamic State in Iraq and the Levant.

It is essential to ensure that Syria ends its prevarication and engages in a serious, urgent and meaningful way with the Technical Secretariat. It is only through genuine engagement that the OPCW will be able to provide the necessary assurance that Syria's chemical-weapon programme is verifiably and definitively a thing of the past. Syria cannot be allowed to simply wait out the interest of the international community while it seeks to retain or reconstitute its chemical-weapon capacities. The Council must actively uphold the international norm against the use of chemical weapons, including by unequivocally backing the OPCW in its mandated task. And it is crucial that this item continue to be discussed regularly by the Council in order to signal to Syria that its lack of cooperation will not go unanswered.

Mr. Stastoli (Albania): I would like to thank the High Representative for Disarmament Affairs, Mrs. Izumi Nakamitsu, for her briefing.

We are facing a situation that has hardly changed since the previous Council meeting on this issue (see S/PV.9141). There has been no progress in discussions between the Organization for the Prohibition of Chemical Weapons (OPCW) and the Syrian Government, no progress on the next inspection in Syria and no progress on the face-to-face meeting between the OPCW Director-General and the Minister for Foreign Affairs and Expatriates of Syria.

To date, following numerous OPCW reports, nothing leads us to believe that Syria's chemical weapons programme is being destroyed. Unfortunately, Syria's chemical weapons programme continues to remain outside the control of the international community.

Since February 2021, all attempts by the Secretariat to organize the twenty-fifth round of consultations between the Declaration Assessment Team and the Syrian National Authority have been

unsuccessful. Communication is reduced to only the exchanges of notes verbales. It is clear that Syria is unwilling to cooperate with the OPCW and its teams in the Technical Secretariat, some of whose staff are being denied entry to the country, despite paragraph 7 of resolution 2118 (2013), which obligates Syria to accept OPCW-designated personnel by providing them immediate and unhindered access, which is necessary for the performance of their duties. We deeply regret Syria's deliberate lack of cooperation with the OPCW.

The latest OPCW monthly report (see S/2022/727, annex) clearly states that given the gaps, inconsistencies and discrepancies identified that remain unresolved, the Secretariat considers that the statement submitted by Syria cannot be considered accurate and complete in accordance with the Chemical Weapons Convention and resolution 2118 (2013). We reiterate our full support for the objective, impartial and professional work of the OPCW technical team.

We welcome the ninth round of inspections of the Barzah and Jamrayah facilities, conducted by the Secretariat from 11 to 18 September, and look forward to the report of its inspections. In that context, we also commend the Fact-Finding Mission for its ongoing activities on determining the use of chemical weapons in Syria, as well as the Investigation and Identification Team for its ongoing activities to identify the perpetrators of the use of chemicals as weapons in Syria. We look forward to their reports. We owe it to the victims to ensure that there is no impunity for chemical weapons attacks. Impunity for the use of chemical weapons must not and will not be tolerated.

In conclusion, I would like to reiterate our firm position that the swift closure of investigations into the use of chemical weapons in Syria will enable the Security Council and the international community to support the Syrian people more effectively in their quest for a peaceful future.

Ms. Syed (Norway): I thank High Representative Nakamitsu for her briefing on progress in the elimination of Syria's chemical weapons programme.

Let me begin by commending the Secretariat for conducting the ninth round of inspections of the Barzah and Jamrayah Scientific Studies and Research Centre facilities from 11 to 18 September. Their twice-yearly inspections are important for fostering a spirit of positive engagement and dialogue between the Secretariat and the Syrian authorities, as well as for

collecting information to determine whether activities at the facilities were consistent with Syria's obligations under the Chemical Weapons Convention. We hope that this inspection will catalyse beneficial discussions on other topics for cooperation, including preparations for a meeting between Director-General Arias and Minister Mekdad. However, numerous roadblocks must be overcome and various issues urgently addressed if we are to fully implement resolution 2118 (2013).

The OPCW requested further information about a reported attack on a former chemical weapons production facility, which apparently contained equipment of relevance to an ongoing Organization for the Prohibition of Chemical Weapons (OPCW) investigation. The OPCW also requested the declaration of all undeclared types and quantities of nerve agents produced and/or weaponized at a certain former chemical weapons production facility. It is vital that Syria comply with those requests and cooperate fully with the OPCW.

Similarly, there are 20 outstanding issues from Syria's initial declaration that remain unresolved. We will continue to urge Syria to provide sufficient technical information and explanations to close those outstanding issues.

Finally, it is critical that Syria complete the necessary measures to lift the suspension of its rights and privileges as a State party to the Chemical Weapons Convention.

Ms. Matar (United Arab Emirates) (*spoke in Arabic*): I thank Mrs. Izumi Nakamitsu for her briefing today.

In the context of today's meeting on the chemical dossier, the United Arab Emirates reiterates its explicit position of rejection and outright condemnation of the use of chemical weapons under any circumstances, by anyone and anywhere. Their use constitutes a flagrant violation of both the provisions of the Chemical Weapons Convention and international law.

My country also reiterates the importance of continuing a constructive dialogue between the Organization for the Prohibition of Chemical Weapons (OPCW) and the Syrian authorities in order to resolve pending issues. We believe that communicating solely through written correspondence will not achieve that purpose, and we stress the need to work on a sustainable solution to move forward on that dossier. We therefore

look forward to the expected meeting between the Syrian Minister for Foreign Affairs and Expatriates and the Director-General of the OPCW, and we hope that the meeting will be productive.

It is unfortunate that the most recent OPCW report (see S/2022/727, annex) does not contain any new developments that warrant convening this meeting. Our positions have not changed and are clear to everyone. They are also documented in our statements and in the meeting records.

In that regard, I would like to remind my colleagues of the importance of using the time and resources of this organ wisely. That primarily means that our meetings must be effective, both in frequency and content. We all share the responsibility of evaluating our work on that dossier. We should therefore reconsider the number of meetings held by the Council regarding the chemical weapons track. When there are developments that require convening a meeting, my country will support it. The issue of chemical weapons is important, and achieving any related progress could contribute, in addition to other factors, to paving the way for an end to the Syrian crisis.

Mr. Eckersley (United Kingdom): I thank the High Representative for her briefing.

There may be one thing that I can agree on with my Russian colleague — that today, sadly, we heard no significant new developments in the briefing from the United Nations. Instead, we again heard a long list of areas in which the Syrian regime continues to refuse to provide adequate information to the Organization for the Prohibition of Chemical Weapons (OPCW) or to complete basic actions in accordance with its international obligations.

But that does not mean that we should simply turn a blind eye and give the Syrian regime a free pass. Syria's refusal to cooperate with the OPCW in order to address the outstanding issues with its Chemical Weapons Convention declaration is inexcusable.

As we have said many times, the 20 outstanding issues are not academic. They include the whereabouts of several hundred tons of chemical warfare agents, the destruction of which still cannot be verified. And the history is not in doubt, with at least eight chemical weapon attacks already independently attributed to the Al-Assad regime against its own people. Syria and Russia have long used distraction and disinformation

in an attempt to deflect attention from appalling war crimes committed by the Al-Assad regime.

Despite what I just said, two things are clear. First, Syria's non-compliance with its obligations under the Chemical Weapons Convention poses a genuine and ongoing threat to international peace and security. Secondly, there must be accountability for the Al-Assad regime's historic use of chemical weapons.

The Security Council must continue to address these issues despite the Syrian and Russian efforts to obstruct progress. We cannot send the signal that we tolerate the use of chemical weapons, and we cannot allow impunity.

Mr. Xing Jisheng (China) (*spoke in Chinese*): I thank High Representative Nakamitsu for her briefing.

At the outset, I wish to reiterate that China has consistently opposed the use of chemical weapons by any country, organization or individual, under any circumstances. Dialogue and consultation are the only way to resolve the Syrian chemical weapons issue.

We have taken note of the consultations between the Syrian Government and the Technical Secretariat through the exchange of written correspondence on the declaration assessment. We call on the Technical Secretariat to fully respect the concerns of a State party regarding the visa issue and take steps to remove the barriers to the holding of the twenty-fifth round of technical consultations.

The investigation by the Organization for the Prohibition of Chemical Weapons (OPCW) and attribution of the alleged use of chemical weapons should be conducted strictly within the framework of the Chemical Weapons Convention, comply with procedural requirements, rely on reliable evidence and draw credible conclusions. The establishment of the Investigation and Identification Team has gone beyond the Convention and runs counter to the traditional consensus observed by the OPCW.

In conclusion, like the Russian Federation, Brazil and the United Arab Emirates, China reiterates that the Council should meet less frequently to discuss Syrian issues or consider combining them for joint consideration. That will not only help to deal with Syrian issues from an integrated perspective, but also improve the Council's efficiency.

Mr. Raguttahalli (India): We thank the Under-Secretary-General and High Representative for Disarmament Affairs, Mrs. Izumi Nakamitsu, for her update.

We note the consistent lack of progress on this track of discussions on Syria in the Council. India attaches high importance to the Chemical Weapons Convention and supports its full, effective and non-discriminatory implementation. India is against the use of chemical weapons by anybody, anywhere, at any time and under any circumstances. India has consistently maintained that any investigation into the use of chemical weapons must be impartial, credible and objective.

We have repeatedly cautioned against the possibility of terrorist entities and individuals gaining access to chemical weapons, including in the region. Therefore, any allegation of the use of chemical weapons must be addressed with the utmost attention.

We have noted the concerns expressed by the Technical Secretariat of the Organization for the Prohibition of Chemical Weapons (OPCW) with regard to Syria's fulfilment of its obligations under the Chemical Weapons Convention. We hope that Syria will take the correct steps to address those concerns. We believe that sustained engagement between Syria and the OPCW Technical Secretariat is essential to resolving all outstanding issues.

In conclusion, India continues to believe that progress on other tracks would also help in facilitating the overall political peace process in Syria, as advocated in resolution 2254 (2015).

The President (*spoke in French*): I shall now make a statement in my capacity as the representative of Gabon.

(*spoke in English*)

I have the honour to deliver this joint statement on behalf of the African members of the Security Council (A3), namely, Kenya, Ghana and my country, Gabon.

We thank the High Representative for Disarmament Affairs, Mrs. Izumi Nakamitsu, for her briefing. We welcome the participation of the representatives of Syria, Iran and Türkiye in this meeting.

We take note of the 108th report (see S/2022/727, annex) of the Organization for the Prohibition of Chemical Weapons (OPCW), highlighting the unchanged situation since the previous briefing (see

S/PV.9141), which has become characteristic of the Syrian chemical weapons file in recent times.

While we acknowledge the submission of the 106th monthly report by the Syrian national authorities on the country's chemical weapons programme, we remain concerned that there has not been any significant progress in the attempts to fully address the issue in accordance with the Chemical Weapons Convention.

We also welcome the conduct of the ninth round of inspections of the Barzah and Jamrayah facilities of the Scientific Studies and Research Centre from 11 to 18 September, and we look forward to the release of the report on the outcome of the inspections.

The A3 reiterates its strong support for resolution 2118 (2013) and calls for concerted global efforts to expedite action on the verifiable destruction of Syria's chemical weapons to give full meaning to the resolution and the Chemical Weapons Convention. We therefore call on the Syrian National Authority to cooperate constructively with the Technical Secretariat of the OPCW to help facilitate the conclusive resolution of all outstanding issues, including the organization of the twenty-fifth round of consultations with the Declaration Assessment Team.

In that regard, we welcome the meeting proposed by the Syrian National Authority to be held in Beirut with the OPCW, and we call on the two sides to reconcile their positions on the agenda for the suggested meeting, taking into account the OPCW letter on the subject dated 20 December 2021.

It is our firm belief that the early convening of such a high-level in-person meeting between the Minister for Foreign Affairs and Expatriates of the Syrian Arab Republic and the Director-General of the OPCW would give the process the required impetus and help to revive efforts towards the final resolution of the outstanding issues.

As we noted in our previous statement, without a definite closure of the matter by the OPCW, the lingering danger of the production and possible use of chemical weapons in Syria, or elsewhere, cannot be completely ruled out. There is no gainsaying that the expeditious resolution of this investigation will also afford us the opportunity to focus our time and limited resources on the other existing challenges facing the Syrian people.

In conclusion, the A3 collectively reiterates its position against the use of chemical weapons by anyone, anywhere and under any circumstances. We also remain committed to the established norms against the use of chemical weapons and support all efforts to eliminate their production, storage and use.

(spoke in French)

I now resume my functions as President of the Council.

I give the floor to the representative of the Syrian Arab Republic.

Mr. Sabbagh (Syrian Arab Republic) *(spoke in Arabic)*: The Security Council is once again considering the chemical dossier issue in the absence of any development that requires this discussion to take place. It is just another opportunity for some known countries, in particular the United States, to reiterate accusatory rhetoric against Syria. This meeting is therefore a waste of time and resources, which should have been better used.

Syria's cooperation with the Organization for the Prohibition of Chemical Weapons (OPCW) should be acknowledged. Since its voluntary accession to the Chemical Weapons Convention in 2013, Syria has fully cooperated with the OPCW. As proof of that, it completely destroyed its stockpiles of chemical weapons and their production facilities in record time. Everyone is well aware that States such as the United States, France and the United Kingdom deliberately ignore that fact for destructive political reasons. Those countries have acted in that way since 2011 in order to destabilize Syria, disrupt its security and destroy its capabilities, including through the use of terrorist organizations and the fabrication of incidents regarding the use of chemical weapons.

The false accusations made by those countries against Syria have no legal or professional basis and are part of a hostile propaganda campaign launched against my country. All those urging Syria to abide by the Convention should first urge other countries that are violating the Convention to abide by it. They should also prevent those countries from facilitating the delivery of chemical weapons and toxic chemicals into the hands of terrorist organizations. Those countries should also be held accountable for the crimes they have committed against the Syrian people, including through the use or manufacture of chemical weapons.

The fact that no one has investigated the extensive information Syria has provided in that regard is clear evidence of what I have said. The representative of the United States of America, instead of lecturing us about the need for Syria to fulfil its obligations under the Convention, should urge his Government to expedite the implementation of its obligations under the Convention. It has been delaying for years the destruction of its huge arsenal of chemical weapons on the basis of false pretexts and excuses.

Some members of the Council argue that the OPCW teams do their work professionally and in an impartial manner. But I wonder how that could be the case? Could it be done through the OPCW Fact-Finding Mission team receiving samples from unknown or even suspicious parties? Could such action be taken professionally in line with the provisions of the Convention? Would the discriminatory working methods of the party requesting an investigation into incidents constitute an impartial and professional method of work?

Would reports submitted by those teams to serve the political agendas of certain countries, including to cover up a military aggression carried out by three member States of the Council, be credible? Would the delay in issuing reports on the incidents reported by Syria from 2017 until now — over a period of more than five years — as opposed to reports expeditiously issued on incidents reported by other parties, indicate an impartial and professional way of working? I hope that everyone will reflect more deeply on those questions.

The Syrian Arab Republic reiterates that it welcomes the twenty-fifth round of consultations by the Declaration Assessment Team. We stress that there are no preconditions for convening that round. The OPCW Technical Secretariat should acknowledge Syria's good faith, because it has not prevented any team or official from entering its territory over the past nine years. Syria calls on the OPCW not to interrupt the important work of the Declaration Assessment Team by holding it hostage just because we will not grant an entry visa to one expert about whose behaviour we have reservations, when he could be easily replaced by one of many other OPCW experts.

My delegation assures the members of the Council that all the issues examined by the Team are subject to the joint review and consultation of the Syrian National Authority and the Technical Secretariat and that no final conclusions have yet been reached. We therefore

deplore some countries' insistence on ignoring the clarifications we have made and quickly making accusations against Syria on the basis of incorrect and unfounded information that is out of touch with reality.

With regard to the upcoming high-level meeting to be held between the Minister for Foreign Affairs and Expatriates, the Head of the National Committee and the Director-General of OPCW, Syria reaffirms its commitment to holding that meeting as soon as possible following the agenda agreed by both parties. That meeting will contribute to resolving the outstanding issues between them. I would like to point out that on 3 October, the Technical Secretariat finally responded to our proposal to hold an organizational meeting between the focal points of both parties in Beirut to prepare for the high-level meeting.

The Syrian Arab Republic reiterates its position regarding the illegality of establishing the so-called Investigation and Identification Team (IIT) of the OPCW. The Chemical Weapons Convention did not mandate the OPCW Technical Secretariat to conduct investigations into determining responsibility for the use of chemical weapons. The IIT was therefore granted an illegitimate mandate, which indicates an irregularity in the Convention's implementation and a violation of its provisions for the purpose of offending a State party to the Convention.

The establishment of the IIT pursuant to a decision adopted by a vote, with the consent of less than half of the countries party to the Convention, runs counter to the consensus by which OPCW decisions are generally adopted. The Team was granted responsibilities that were not set forth in the Convention, which represents a clear breach of the Convention and a violation of its provisions. We also note that voting is not a legitimate means of amending the text of the Convention. My delegation once again reiterates Syria's total refusal to recognize the Team and its illegitimate and unprofessional working methods, which will ultimately lead to false conclusions that should be condemned.

In conclusion, I reiterate the Syrian Arab Republic's unequivocal condemnation of the use of chemical weapons by anyone, anytime, anywhere and under any circumstances. I stress that Syria does not seek to undermine the work of the OPCW — rather, we urge its teams to carry out their work pursuant to the provisions of the Convention in a manner that guarantees the professionalism, impartiality and credibility of OPCW.

Syria is standing in the way of some countries' ability to use that organization as a tool to implement harmful and anti-Syrian aims, along with certain countries' insistence on politicizing that dossier in the Council and their efforts to conceal acts perpetrated by terrorist groups against Syrian citizens. They are manipulating the provisions of the Convention to create illegitimate mechanisms. Syria stresses that if those countries do not change their destructive behaviour and subversive agenda regarding our country, we will be unable to have an objective discussion on that dossier and bring it to a close in a professional and impartial manner.

The President (*spoke in French*): I now give the floor to the representative of the Islamic Republic of Iran.

Mr. Jalil Iravani (Islamic Republic of Iran): The Islamic Republic of Iran once again condemns in the strongest possible terms the use of chemical weapons by anyone, anywhere and under any circumstances. We reiterate that the Chemical Weapons Convention must be implemented fully, effectively and without discrimination. We believe that politicizing the Convention's application and using the Organization for the Prohibition of Chemical Weapons (OPCW) for political purposes endanger the legitimacy of both the organization and the Convention itself. The OPCW must be able to carry out its responsibilities in an impartial, professional and objective manner. Furthermore, in order to establish facts and reach evidence-based conclusions, any investigation into the use of chemical weapons must be impartial, professional, credible and objective and must strictly adhere to the provisions and procedures outlined in the Convention.

We acknowledge the critical importance of the efforts of the Syrian Arab Republic to uphold its obligations under the Convention. We urge the OPCW and the Syrian Arab Republic to maintain their contact and interaction. The high-level meeting between Syria's Foreign Minister and the Director-General of the OPCW is currently being arranged. That meeting, which is expected to take place, has the potential to pave the way for the parties to resolve outstanding issues. In that regard, the Syrian National Authority proposed to the Technical Secretariat that the two parties should hold a coordination meeting in Beirut to agree on the agenda for the high-level meeting. The Technical Secretariat responded to that request on 3 October. We also commend the Syrian Arab Republic for submitting its

107th monthly report, dated 15 October, to the Director-General of the OPCW. The report details activities on Syria's territory related to the destruction of chemical weapons and their production facilities. In line with its constructive cooperation, Syria also facilitated the OPCW Technical Secretariat's visit to Syria to conduct its ninth inspection tour of Syria's Scientific Studies and Research Centre.

While the Syrian Arab Republic has met the Convention's requirements and continues to cooperate constructively with the OPCW, handling this file in a political manner and applying double standards will only divert discussions from its technical nature. We therefore reiterate our call on the Security Council to make full use of its meetings on Syria. Dedicating one Council meeting per month to the repetition of positions and unfounded allegations against the Syrian Government is not conducive to the efficiency of the Security Council. We support discussions on the matter on the technical track within the OPCW in order to foster positive dialogue between Syria and the OPCW to resolve outstanding issues.

The President (*spoke in French*): I now give the floor to the representative of Türkiye.

Mr. Yakut (Türkiye): We thank High Representative Nakamitsu for her briefing. We commend the independence, professionalism and impartiality of the Technical Secretariat of the Organization for the Prohibition of Chemical Weapons (OPCW) and appreciate the efforts of the Director-General of the OPCW to establish a direct line of contact to resolve outstanding issues.

As reported yet again by the OPCW, the gaps, discrepancies and inconsistencies in the chemical-weapon declaration of the Al-Assad regime continue, and the OPCW still cannot consider

that declaration to be accurate and complete. The regime is obstructing the work of the Investigation and Identification Team by refusing to issue visas. Furthermore, the OPCW Technical Secretariat is still waiting for responses to its inquiries sent to the Syrian regime in October 2020 and July 2021, regarding its chemical-weapon production facilities and chlorine cylinders used in the attack that took place in Douma in 2018. We call on the Syrian regime to fully cooperate with the OPCW Technical Secretariat and provide the necessary information, as it is obliged to do under the Chemical Weapons Convention.

The investigation by the Fact-Finding Mission and the Investigation and Identification Team are important to establishing the truth about the use of chemical weapons in Syria. Independent scientific investigations have established that the Al-Assad regime is responsible for resorting to the use of chemical weapons against its own population on multiple occasions. We look forward to the completion of the ongoing investigations, especially the next report of the Investigation and Identification Team on the Douma attack of 2018.

Let me reiterate the fact that the use of chemical weapons by anyone, anywhere and in any circumstances is a grave violation of international law. It is our collective responsibility to ensure accountability for the use of chemical weapons in Syria. Genuine political reconciliation there will be possible only through justice and accountability. It is high time that the members of the Council left their political differences behind and took steps to enforce the Council's own resolutions, and specifically resolution 2118 (2013). Ending impunity is imperative, including to honour the hundreds of innocent lives lost due to chemical-weapon attacks during the conflict in Syria.

The meeting rose at 4.05 p.m.